

25STCV35243 25STCV35243

County: los-angeles

Division: Civil Law and Motion

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV35243

KAREN

EDWARDS, AN INDIVIDUAL vs LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION
AUTHORITY, A PUBLIC ENTITY, et al.

August

17, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF KAREN EDWARDS'S MOTION TO COMPEL FURTHER RESPONSES TO FORM
INTERROGATORIES, SET ONE.

RULING:

The Court grants the Motion.

On or before September 18, 2026, Defendant LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION AUTHORITY shall serve further responses, notwithstanding the objections, and in full compliance with the California Discovery Act (Code Civ. Proc. § 2016.010 et seq.), as to Plaintiff's Form Interrogatories, Set One, numbers. 12.1-12.7, 15.1, 16.1, 16.2, 16.9, 16.10, and 20.1-20.11.

On or before that same date, Defendant LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION AUTHORITY, and Ashour Yehoshua, APC, jointly and severally, shall pay discovery sanctions in the sum of \$3,210.00 to Plaintiff KAREN EDWARDS, the Court finding the absence of substantial justification. (E.g., Code Civ. Proc., § 2023.030.)

Plaintiff to give notice.

I.

BACKGROUND

On December 3, 2025, KAREN EDWARDS (Plaintiff) filed a form Complaint against LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION AUTHORITY et al. (Defendants), identifying Causes of Action for:

1.

MOTOR VEHICLE; and

2.

GENERAL NEGLIGENCE.

Plaintiff alleges that

Defendant

JOHN DOE abruptly closed bus doors on Plaintiff boarding the bus, thereby causing Plaintiff to sustain serious injuries and damages.

On July 22, 2026, Plaintiff filed the Motion to Compel Further Responses to Form Interrogatories, on

grounds that certain numbers lack complete and straightforward answers based on reasonably available information after a reasonable and good-faith inquiry. Plaintiff additionally requests monetary sanctions.

LOS ANGELES COUNTY

METROPOLITAN TRANSPORTATION AUTHORITY (Defendant) advocates denial, based on arguments such as that the responses are sufficient and some missing information is explained. Defendant also requests \$960.00 against Plaintiff, Oganess Sarkisian, Esq., and DOWNTOWN L.A. LAW GROUP.

II.

LEGAL STANDARD

If interrogatory

responses lack specificity, then parties may move to compel further responses under Code of Civil Procedure section 2030.300, subdivision (a), providing for motions to compel, where parties deem that an answer is evasive, incomplete, or inadequate as to specification of documents. (*Best Products, Inc. v. Superior Court* (2004) 119 Cal.App.4th 1181, 1190.) “While the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 541.)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (*Deck v. Devs. Inv. Co.* (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (*Kwan Software Engineering, Inc. v. Hennings* (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (*Doe v. U.S. Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1435.) Courts may determine substantial justification based on the “whole picture” of the discovery dispute, including where parties partially prevailed as to some discovery items in dispute, or where discovery concessions occurred only after improperly asserted objections. (*In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1297.) Even where satisfactory responses have been served after the filing of motions to compel, courts may award sanctions. (*Sinaiko*

Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 409; County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 256 [citing Sinaiko regarding court considering supplemental responses served after motion]; Cal. Rules of Court, rule 3.1348(a).)

III.

ANALYSIS

Plaintiff summarizes the Motion, as follows:

“Plaintiff

requests that the Court overrule Metro's objections to the extent they are meritless or too general and require complete and straightforward answers based on all information reasonably available to Metro after a reasonable and good-faith inquiry of its employees, agents, departments, records, and electronic systems. To the extent Metro withholds information on privilege or work-product grounds, Plaintiff requests that Metro identify the interrogatory and supply sufficient factual information to evaluate the claim without revealing the privileged information itself.”

(Motion, 2:1-7.)

Defendant provides the following summary:

“1.

Several of Metro's original Form Interrogatory responses were complete and substantive responses that directly disclosed Metro's defense position, including Metro's contention that Plaintiff was not injured as alleged and Metro's denial of any known vehicle malfunction;

2.

The absence of DVR/SmartDrive footage is fully explained by Metro's 30-day retention policy on onboard bus videos, a fact Defense counsel communicated directly to Plaintiff's counsel by telephone during the meet-and-confer, and not by any discovery failure or evasion....

(Opposition, 2:18-27.)

Additionally, Defendant

says, “[a]s additional identifying information has become available through litigation, Metro is supplementing those responses accordingly.” (Opposition, 5:12-13.)

Similarly, Defendant “will supplement with responses specifically limited to bus 6827 on Route 108 on December 13, 2024....” (Opposition, 7:3-4.)

Interrogatory responses

must be (1) the information sought, (2) an exercise of a valid option to produce writings, or (3) an objection. (Hernandez v. Superior Court (2003) 112 Cal.App.4th 285, 293.) An interrogatory response must be as complete and straightforward as reasonably available information permits. (Code Civ. Proc., § 2030.220.) A response must “represent the interrogated party’s present best and complete answer.” (Fuss v. Superior Court (1969) 273 Cal.App.2d 807, 816.) If a respondent does not have personal knowledge for a full response, the party shall state that and make a reasonable and good faith effort to obtain the information by inquiries. (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 406; Regency Health Services, Inc. v. Superior Court (1998) 64 Cal.App.4th 1496, 1504.) Where interrogatory responses reveal all information currently available to a party, but the respondent cannot furnish all requested information, then the party should set forth the efforts made to obtain that information. (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 782, superseded by statute on another ground as stated in Guzman v. General Motors Corp. (1984) 154 Cal.App.3d 438, 444.) “A party may not deliberately misconstrue a question for the purpose of supplying an evasive answer. [Citation.] Indeed, where the question is somewhat ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response.” (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 783. Accord, Field v. U.S. Bank Nat’l Assn. (2022) 79 Cal.App.5th 703, 708.)

“[D]isclosing

a list of witnesses from whom an attorney has taken recorded statements may, in some instances, reveal the attorney’s impressions of the case.” (Coito v. Superior Court (2012) 54 Cal.4th 480, 501.) (Underscoring added.) “Facts otherwise admissible cannot be shielded from disclosure simply because they have been placed in confidential documents.” (Wimsatt v. Superior Court (2007) 152 Cal.App.4th 137, 161.) A Court errs in compelling a full response to interrogatory 12.2, because listing

potential witnesses interviewed by counsel would reflect counsel's evaluation of the case, by revealing the witnesses identified in a response to interrogatory 12.1 that counsel deemed important to interview. (Nacht & Lewis Architects, Inc. v. Superior Court (1996) 47 Cal.App.4th 214, 217.) Form interrogatory No. 12.3 is not automatically covered by the work product privilege, and usually must be answered, except if there is a showing that a response would reveal the attorney's work product. (Coito v. Superior Court (2012) 54 Cal.4th 480, 502; McVeigh v. Recology San Francisco (2013) 213 Cal.App.4th 443, 474.) Official form interrogatory number 12.3 should not be compelled to the extent it entails attorney work product. (Nacht & Lewis Architects v. Superior Court (3d Dist. 1996) 47 Cal.App.4th 214, 218.)

Here, the Court finds that Defendant's responses are not compliant with discovery-related law referenced above. Some specific examples are set forth below:

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The response objections as to number 12.1 are overruled, as it properly seeks witness contact information that does not involve privacy invasion. Form interrogatories approved by the Judicial Council entail fundamentally routine discovery of witness contact information. (Puerto v. Superior Court (2008) 158 Cal.App.4th 1242, 1250.) "[W]hen the court concludes that there is no serious invasion of privacy no balance of opposing interests is required." (Ibid., p. 1256.)

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Responses to numbers 12.2 through 12.3 are not shown by evidence or a privilege log to relate to privileged information, and the cited federal opinions do not govern. Required information is not with the responses. "Metro will provide a privilege log." (Opposition, 7:1.) The objecting party has the burden to file evidence of the preliminary facts establishing a privilege exists. (HLC Properties, Limited v. Superior Court (2005) 35 Cal.4th 54, 59.) "[A] responding party may object to an interrogatory that seeks privileged information by clearly stating the objection and the particular privilege invoked." (Hernandez v. Superior Court (2003) 112 Cal.App.4th 285, 293.) (Underscoring added.) "California law governs discovery disputes that arise in our courts." (Unzipped Apparel, LLC v. Bader (2007) 156 Cal.App.4th 123, 130.)

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The responses to numbers 12.4, 12.6, 12.7, 16.1, 16.2, 16.9, 16.10, 20.1, 20.2, 20.3, 20.4, 20.5, 20.6, 20.7, 20.8, 20.9, 20.10, and 20.11, are not supported by information to show involvement of privileged information, and do not rule out experts having percipient knowledge that would have to be disclosed. No objectionable premature disclosure of expert opinion occurs before the retaining of experts, as to percipient experts already witnessing relevant aspects. (See *Schreiber v. Est. of Kiser* (1999) 22 Cal.4th 31, 39 ["may testify as to any opinions formed on the basis of facts independently acquired and informed by his training, skill, and experience."]. Accord, *Kalaba v. Gray* (2002) 95 Cal.App.4th 1416, 1421 [a percipient expert acquires personal knowledge independently of the litigation and is more like a fact witness qualified to form an opinion]. See also *S. Tahoe Pub. Util. Dist. v. Superior Court* (1979) 90 Cal.App.3d 135, 139 ["the demand for disclosure of the expert witnesses who might be called at trial was premature and the order compelling compliance therewith was an abuse of discretion."].) Alternatively, Defendant failed to set forth efforts to obtain unknown information.

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The response to 12.5 states objections inferring known information but is followed by answering "no" to knowing such information, indicating that the ultimate answer is not code-compliant. If a party objects to discovery requests, but also provides complete responses to the requests, then nothing is left to address in a motion to compel. (*American Federation of State, County & Municipal Employees v. Metropolitan Water Dist.* (2005) 126 Cal.App.4th 247, 269.)

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The response to number 15.1 lacks substance. As to Form Interrogatory 15.1, failure to serve complete and straightforward responses stating substantive information, witnesses, and documents contended to support affirmative defenses and claim denials, may support terminating sanctions. (*Liberty Mut. Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093, 1097, 1106.)

IV.

CONCLUSION

The Court grants the Motion,
and denies the opposing sanctions request, for reasons set forth above.